



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11785
(SECOND REVISION)

EXPIRATION DATE: May 31, 1999

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Chilton Products
(Division of Western Industries, Inc.)
Chilton, WI
2. PURPOSE AND LIMITATIONS:

This exemption authorizes the manufacture, marking and sale of DOT Specification 39 cylinders with a marking deviation to be used for the transportation in commerce of Division 2.1 and Division 2.2 materials authorized for DOT-Specification 39 cylinders. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: The marking requirements in 49 CFR Sections 172.203(a), 172.301(c), and 178.65(i)(2)(viii)(B).
5. BASIS: This exemption is based on the application of Western Industries, Inc. dated February 26, 1997, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101).

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Those Division 2.1 and Division 2.2 materials authorized in DOT Specification 39 cylinders	2.1 2.2	Various	NA

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are cylinder in full conformance with the requirements for DOT Specification 39 cylinders except for the marking required in §178.65(i)(2)(viii)(B). Cylinders manufactured prior to April 30, 1996 may be marked as specified in §178.65(i)(2)(viii)(A).

8. SPECIAL PROVISIONS:

a. Offerors for transportation of the hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.

c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

d. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

e. The marking requirements of §§ 172.203(a) and 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only.10. MODAL REQUIREMENTS: The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.

for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

6/5/97
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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